

CONTRACT NO: 004-2025-26
Michael DiTomasso, PhD. – Provider Services Agreement

THIS CONTRACT is entered into between The Center for Family and Child Enrichment, Inc., 1825 N.W. 167th St., Suite 102, Miami Gardens, Florida 33056, hereinafter referred to as the "CFCE" and Michael DiTomasso, PhD., 13834 SW 122nd Court, Miami, FL 33186, hereinafter referred to as the "Provider".

WHEREAS, CFCE has entered into a contract with South Florida Behavioral Health Network, Inc., d.b.a. Thriving Mind (hereinafter referred to as "Thriving Mind") under Contract KHME2-01-47 for the provision of behavioral health services;

WHEREAS, this Subcontract hereby incorporates by reference and requires adherence to all applicable provisions of CFCE'S contract (KHME2-01-47) with Thriving Mind, and any amendments thereto, and Thriving Mind's Prime Contract with the Department of Children and Families, and any amendments thereto.

WHEREAS, if there is any conflict between this contract and CFCE's contract with Thriving Mind (KHME2-01-47) or Thriving Mind's prime contract with the Department of Children and Families (DCF), the provisions of SFBHN's prime contract with DCF shall control.

WHEREAS, the Provider has the capacity to provide behavioral health services and has demonstrated the effectiveness and qualifications to provide these services, and;

WHEREAS, CFCE desires to obtain such services of the Provider and the Provider desires to provide such services;

NOW, therefore, in consideration of the mutual covenants recorded herein, the parties agree as follows:

ARTICLE I
INDEMNIFICATION

- A. The Provider shall act as an independent contractor and not as an employee of CFCE in providing the aforementioned services.
- B. The Provider shall indemnify and save the past, present and future officials, employees and agents of CFCE harmless from any and all claims, liabilities, losses or causes of action which may arise out of this Contract.
- C. The Provider, directly or through Provider's insurance carrier, shall pay all claims and losses of any nature whatsoever, in connection therewith and shall defend all suits, in the name of CFCE, when applicable, and shall pay all costs and judgments which may issue thereon.

ARTICLE II CIVIL RIGHTS

- A. The Provider agrees to abide, and be governed, by Title VI and VII, Civil Rights Act of 1964 (42 U.S.C. §§ 2000d and 2000e) and Title VIII of the Civil Rights Act of 1968, as amended, which provides in part that there shall be no discrimination of race, color, sex, religious background, ancestry or national origin in performance of this Agreement, in regard to employees or applicants for employment. It is expressly understood that upon receipt of evidence of such discrimination, CFCE shall have the right to terminate said Agreement.
- B. The Provider also agrees to abide, and be governed, by the Age Discrimination Act of 1975, as amended, 42 U.S.C. § 1601, which provides in part that there shall be no discrimination against persons in any area of employment because of age.
- C. The Provider agrees to abide, and be governed, by Section 504, of the Rehabilitation Act of 1973, as amended, 29 U.S.C. § 794, which prohibits discrimination on the basis of disability against an otherwise qualified individual.

ARTICLE III NOTICES/ASSIGNMENTS/MODIFICATIONS

- A. It is understood and agreed between the parties hereto that written notices to be given hereunder shall be sent by registered or certified mail, return receipt requested, or by overnight delivery to the address(es) set forth below:
 - 1) If to CFCE, to the attention of:

Tomara Mays, Ed.D, CEO
1825 NW 167th Street, Suite 102
Miami Gardens FL 33056
 - 2) If to Provider, to the attention of:

Michael DiTomasso, PhD.
13834 SW 122nd Court
Miami, Florida 33186
- B. All notices required under this Contract shall be deemed to have been given when mailed. If notice by courier, it shall be deemed effective upon delivery. Any party may change the notice address by providing notice of the new address in accordance with the provisions hereof.
- C. There will be no assignment of this Agreement
- D. This Agreement contains all the terms and conditions agreed upon by the Parties. No other Agreement, oral or otherwise, regarding the subject matter of this Agreement shall be deemed to exist or bind any of the parties hereto. Any alterations, variations, modifications or waivers of provisions of this Agreement shall only be valid when they have been reduced to writing, duly approved and signed by both Parties and attached to the original of this Agreement.

**ARTICLE IV
INDEPENDENT CONTRACTOR**

- A. The Parties to this Agreement are autonomous, and the Agreement neither stipulates, nor implies an organic affiliation between them.
- B. In performing the obligations under this Agreement, Provider shall at all times be acting in the capacity of an independent contractor and not as an officer, employee, or agent of CFCE, Thriving Mind, or DCF.
- C. Neither the Provider nor its agents, employees, subcontractors or assignees shall represent to others that they are agents, officers, or employees of, or have the authority to bind CFCE by virtue of this Agreement.
- D. Provider is not entitled to any fringe benefits, disability insurance, worker's compensation, or unemployment insurance through CFCE and CFCE is not responsible for any injury sustained by Provider during the performance of this Agreement.

**ARTICLE V
INSURANCE**

- A. Provider shall maintain during the terms of this Agreement professional liability (malpractice) insurance as specified herein, and a certificate of insurance as evidence of compliance therewith shall be submitted to CFCE upon execution of this Agreement.
- B. **Provider shall maintain professional liability (malpractice) insurance in the minimum amount of \$1,000,000 per incident and \$3,000,000 aggregate.**
- C. CFCE shall be named as an additional insured which shall appear as follows:

Center for Family and Child Enrichment, Inc.,
1825 NW 167th Street, Suite 102
Miami Gardens FL 33056
- D. No cancellation, modification or change in insurance shall be made without thirty (30) days advance written notice to CFCE in accordance with the notice requirements set forth herein.
- E. All insurance policies required above shall be issued by companies authorized to do business under the laws of the State of Florida.

**ARTICLE VI
AUDITS AND RECORDS**

- A. The Provider is required to maintain records, books and documents, including electronically stored data within the guidelines of the generally accepted accounting procedures and practices which will reflect all revenues and expenditure of funds provided by CFCE.

- B. All records produced or generated by Provider shall be subject to review, inspection, or audit by duly authorized personnel from CFCE and shall be maintained in a manner consistent with the CFCE's Retention and Destruction of Case Records Policy, a copy of which is attached hereto as Attachment B and is incorporated by reference.
- C. Unless otherwise instructed in writing by duly authorized personnel from CFCE, the records retention period shall be seven (7) years from the date the case is closed.
- D. Fiscal, progress, and inventory reports shall be filed with CFCE as specified in Attachment A, and such other reports as may be required by CFCE. These reports shall be reasonable and within the scope, timeframe, and purpose of this Agreement.
- E. Provider's records shall be periodically reviewed for diagnosis and treatment of patients assigned to the Provider, pursuant to an authorized and adopted Peer Review process.

ARTICLE VII INCIDENT REPORTING

- A. Client Risk Prevention. Services rendered under this Contract shall be in accordance with the Client Risk Prevention System, and situations listed in CFOP 215-6, Paragraph 5, should be reported in the manner described in CFOP 215-6.
- B. Abuse, Abandonment and Neglect. Provider shall abide by Chapter 39.201 of the Florida Statutes which states that any person who knows, or has reasonable cause to suspect, that a child has been or is being abused, abandoned or neglected shall immediately report such knowledge or suspicion to the central abuse hotline (1-800-96ABUSE).
- C. Abuse, Neglect and Exploitation Reporting. Provider shall abide by Chapter 415 of the Florida Statutes which states that any person who knows or has reasonable cause to suspect, that a vulnerable adult has been or is being abused, neglected, or exploited shall immediately report such knowledge or suspicion to the central abuse hotline (1-800-96ABUSE).

ARTICLE VIII SAFEGUARDING INFORMATION

- A. Any information concerning a recipient of services under this contract shall not be used or disclosed for any reason other than in conformity with CFCE's regulations, except by written consent of the recipient, or by his/her responsible parent or guardian.
- B. Provider will comply with all applicable provisions of the Health Insurance Portability and Accountability Act of 1996 (HIPAA) and shall sign a Business Associate agreement with CFCE affirming a commitment to compliance. Said Business Associate Agreement shall be incorporated herein by reference.

**ARTICLE IX
EFFECTIVE TERM**

Both parties agree that the effective term of this Agreement shall be from July 1, 2025 (“Effective Date”), to June 30, 2026.

**ARTICLE X
TERMINATION**

- A. If either party breaches any provision of this Contract, and if such breach is not cured within ten (10) business days after receiving written notice from the other party specifying such breach in reasonable detail, the non-breaching party shall have the right to terminate this Contract by giving written notice thereof to the party in breach, which termination shall go into effect immediately upon receipt.
- B. “Breach” shall be defined as a failure to fulfill in a timely and proper manner an obligation under the Contract, or a violation of any of the Contract’s covenants, agreements, or stipulations.
- C. Notwithstanding the above, the Provider shall not be relieved of liability to CFCE for damages sustained by CFCE by virtue of any breach of this Contract by the Provider and CFCE may withhold any payments to the Provider until such time as the exact amount of damages due CFCE from the Provider is determined.
- D. Both parties agree that this Agreement may be terminated by either party hereto by written notice to the other party of such intent to terminate at least sixty (60) days prior to the effective date of such termination. The Board of Directors is authorized to terminate this Agreement on the part of the CFCE.

**ARTICLE XI
RENEWAL**

Both parties agree that this Agreement may be renewed in writing, at CFCE’s option at least thirty (30) days prior to the expiration of this Agreement for a one (1) year period under the same terms and conditions set forth herein.

**ARTICLE XII
AMOUNT PAYABLE**

Both parties agree that payment for services under this Agreement are contingent upon the continuation of funds provided by Citrus Family Care Network under its Agreement with the CFCE and should funding be reduced, the amounts payable under this Agreement may be reduced proportionately.

For services to be rendered and projected units of service:

See Attachment A

**ARTICLE XIII
REIMBURSEMENT**

CFCE agrees to compensate the Provider for services rendered to persons eligible under this Agreement. The Provider agrees to submit reimbursement/payment requests to CFCE accompanied by such documentation as required. Compensation shall be made in accordance with the procedures as outlined below:

Method of Reimbursement:

1. An invoice for payment shall be submitted according to the approved payment schedule.
2. Documentation of delivered service shall be submitted (i.e. time card, list of clients seen, progress notes, delivered goods and services).
3. Records documenting services shall be maintained by the Provider.

**ARTICLE XIV
GOVERNING LAW/VENUE**

- A. This agreement shall be considered to have been executed in the State of Florida and shall be interpreted and enforced in accordance with the laws of the State of Florida.
- B. Proper jurisdiction and venue for any disputes arising from or relating to this Agreement shall lie exclusively in the state or federal courts located in Miami-Dade County, Florida.

**ARTICLE XVI
CONTRACT SUPERSEDES PRIOR AGREEMENTS**

There are no provisions, terms, conditions, or obligations other than those contained herein and this Contract shall supersede all previous communications, representations, or agreements, either verbal or written between the parties.

**ARTICLE XVII
ENFORCEABILITY OF CONTRACT**

If any term or provision of this Contract is legally determined to be unlawful or unenforceable, such term or provision shall be stricken and the remainder of the Contract shall remain in full force and effect.

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ARTICLE XVIII
CREDENTIALING AND PRIVILEGING

Upon request, Provider agrees to provide all necessary documentation that is required to comply with CFCE's credentialing and privileging policies and procedures.

The Parties hereby enter into this Agreement, together with all attachments referenced herein, as of the effective date set forth above.

Tomara Mays, Ed.D
Chief Executive Officer
Center for Family & Child Enrichment, Inc.

Michael DiTomasso, PhD.
Clinical Psychologist

Date

Date

ATTACHMENT A

SERVICES TO BE PROVIDED

DATE: July 1, 2025

Michael DiTomasso, PhD., agrees to provide psychiatric services to and for The Center for Family and Child Enrichment, Inc. ("CFCE") on an independent contractor basis, in accordance with the following provisions and for the period specified:

1. Consultation services will be in the area(s) of psychological testing and interpretation, in accordance with my experience and qualification;
2. Consultation assignments subject to your approval;
3. My availability for consultation during the period of this agreement is per my agreement.
4. My participation in any activities other than those specified in sections five (5) below, will be subject to my approval.
5. The minimum specific obligations constituting fulfillment of this agreement will be:
 - a) Conduct psychological evaluations on children and adults, per referral by CFCE staff;
 - b) Provide evaluation reports in accordance with standards, in a timely manner;
 - c) Provide consultations with respect to reports, as needed.
6. All written materials submitted will be considered original and the sole property of the CFCE, unless other authorship or claim is clearly indicated on the document(s) when submitted.
7. It is understood that I will work independently in fulfilling specific assignments within the guidelines given for each assignment, or if none are given, within my professional judgment and knowledge of appropriate procedure.
8. It is understood that all services provided to, and in the name of the CFCE, must be in keeping with written policies and organizational philosophies, i.e., Statement of Purpose, Consultation Guidelines.
9. It is agreed that I will not accept any private consultation with any group whom I have served as a CFCE representative, within a nine (9) month period following the last date of such service, without written permission from an Officer of the CFCE.
10. It is understood that the CFCE will not make payroll tax deductions from fees paid to me.
11. It is understood that this contract does not entitle me to any fringe benefits, disability insurance, worker's compensation, or unemployment insurance through the CFCE and that the CFCE cannot be held responsible for any injury to me, or caused by me, in the course of any services.

12. The Provider and the CFCE mutually agree that fees for services rendered under the terms of this agreement are payable by the CFCE or its affiliates only, and may not be collected directly from patients.
13. It is understood that the CFCE will report all fees paid to me to the Internal Revenue Service, and to me on Form 1099, within two (2) months of the end of the calendar year of payment.
14. Fees applicable to this Agreement are set forth in Provider's 2024-2025 Rate Sheet which is attached hereto and incorporated by reference. Said fees shall be payable by check within thirty (30) days after receipt of Provider's invoice.
15. Provider agrees to perform evaluations and observations at the above-referenced rates in any of the following locations:
 - a) CFCE's offices;
 - b) Provider's offices;
 - c) Care facilities;
 - d) Substance abuse treatment facilities;
 - e) Shelters;
 - f) Hospitals; and
 - g) Jails and juvenile detention centers.
- h) Provider will perform evaluations and observations in the client's home when no other options are available. There will be a \$100 surcharge for such services.
- i) This Agreement covers the period from July 1, 2025 through June 30, 2026.

ATTACHMENT B

Retention and Destruction of Case Records Policy